

Ravishanker Verma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 November 2022 · WRIT-C No. 31705 of 2022 · **Writ dismissed; petitioner relegated to Section 127 appeal.**

HEADNOTE

After rejection of a clause 6.5 objection to assessment and penalty for unauthorised use of electricity, the consumer's remedy is an appeal under Section 127 of the Electricity Act, 2003. Article 226 does not permit a factual enquiry into such assessment. The writ was dismissed on the ground of alternative remedy.

FACTUAL SUMMARY

The petitioner was assessed and penalised for alleged unauthorised use of electricity. He first approached the High Court in Writ-C No. 21379 of 2022, which on 1 August 2022 relegated him to file an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005. After the Executive Engineer/Presiding Officer, Vidyut Vitran Khand, Ballia rejected that objection, he filed this writ petition challenging the rejection.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

alternative-remedy-after-uue-assessment

HOLDING

Where the consumer is aggrieved by assessment and penalty for unauthorised use of electricity, including after rejection of an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005, the statutory remedy is an appeal under Section 127 of the Electricity Act, 2003. No factual enquiry into such assessment lies under Article 226. The writ petition was dismissed on the ground of alternative remedy. ¶ 1

PRINCIPLE TAGS

alternative-remedy-s127-appeal-bars-writ-against-s126-assessment Writ against assessment and penalty for unauthorised use of electricity, after rejection of a clause 6.5 objection, dismissed; petitioner relegated to Section 127 because Article 226 does not permit a factual enquiry. ¶ 1

alternative-remedy-relegation-section-127 Petitioner directed to the appellate authority under Section 127 after the clause 6.5 objection was rejected. ¶ 1

final-assessment-order-relegates-assessee-to-section-127-appeal Assessment by the Executive Engineer/Presiding Officer left to a Section 127 appeal rather than writ review. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE UNAUTHORISED-USE ASSESSMENT, PENALTY, AND THE CLAUSE 6.5 REJECTION

Writ dismissed on alternative remedy without a factual enquiry under Article 226. ¶ 1